SOURCE CODE LICENSE AGREEMENT TEMPLATE

[TO BE USED ON THE SIDE OF THE LICENSOR]

PRICE – EUR 29

TECHNICAL DATA SHEET AND TERMS OF USE

Contract description

This Source Code License Agreement is designed as a general-purpose template suitable for a broad range of source code licensing scenarios.

Important notice: Source code licenses vary significantly in their structure, commercial model and legal implications. The main categories include: (a) commercial paid licenses (where the licensee pays an upfront or recurring fee for the right to use and/or modify the source code); (b) free licenses with mandatory paid maintenance or support obligations (where the code is provided at no charge but the Licensor requires the licensee to purchase maintenance, updates or support services); (c) free licenses structured to support the Licensor's product or service ecosystem (where access to source code drives adoption of other paid products or services); and (d) open source licenses (which impose specific obligations regarding redistribution, modification and attribution). Each category presents distinct legal and commercial risks and opportunities. This template provides a balanced starting point for a commercial source code license but cannot cover all possible scenarios. Users are strongly advised to review and adapt the template to the specific license type and business model applicable to their transaction, and to seek specialist legal advice accordingly.

In the Template you will find:

- **License Grant and Restrictions** – permitted uses of the Licensed Software (including source code and object code), usage restrictions, and downstream distribution rules.
- **IP Rights Ownership** – allocation of ownership in the Licensed Software, Derivatives and Feedback, and IPR indemnification by the Licensor.
- **Disclaimer of Warranty and Limitation of Liability** – "as is" delivery with balanced carve-outs; cap on indirect damages; IPR indemnification floor.
- **Compliance** – regulatory obligations (data protection, export control, anti-corruption, modern slavery).
- **Confidentiality** – Protection of proprietary information

- **Term and Termination** – agreement duration, renewal conditions, termination rights (for cause or convenience), and post-termination obligations.
- **Governing Law and Dispute Resolution** – Jurisdiction and competent court. We propose ordinary court and laws. If you intend to choose the arbitration, we recommend to carefully consider the associated costs, which can vary significantly in consideration of the structure you select for the arbitration panel and of the relevant jurisdiction.

Recommended use

- The Template is suitable to be used on the side of the Licensor.
- The liability and IPR indemnity section is a mere recommendation, in line with the general practice but should be revised and adjusted as required to fit with the specific business case.
- All commercial and technical terms are recommendations only and based on common market practice and should be revised and edited as needed.

Composition and language

Language - English

Terms of use

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Disclaimer

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